



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36635649

Date: JAN. 24, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner seeks employment-based second preference (EB-2) immigrant classification as either a member of the professions holding an advanced degree or an individual of exceptional ability, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding the Petitioner did not establish that a waiver of the required job offer, and thus of the labor certification, would be in the national interest. We dismissed an appeal and two subsequent combined motions to reopen and reconsider. The matter is before us again on a third combined motion to reopen and reconsider. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the combined motions.

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). Our review on motion is limited to reviewing “the prior decision” and “the latest decision in the proceeding.” 8 C.F.R. § 103.5(a)(1)(i), (ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit. *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome).

In our most recent decision, we acknowledged the Petitioner’s arguments and reiterated that the evidence did not establish her eligibility for a national interest waiver. With this third combined motion, the Petitioner submits evidence previously submitted with her two most recent combined motions—including a professional plan, an evaluation of her education and work experience, and an expert opinion letter—which she again presents as evidence of her eligibility for a national interest waiver. The Petitioner does not, however, contest our decision to dismiss her most recent combined motions to reopen and reconsider. She does not provide new facts supported by documentary evidence to establish her eligibility, nor does she question the factual or legal correctness of our decision based on any incorrect application of law or policy at the time we issued the decision.

We must dismiss motions that do not meet applicable requirements. 8 C.F.R. § 103.5(a)(4). We will, therefore, dismiss the Petitioner's motions.

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.